

IN THE DISTRICT COURT OF THE SIXTH JUDICIAL DISTRICT OF
THE STATE OF IDAHO, IN AND FOR THE COUNTY OF CARIBOU

STATE OF IDAHO,)
)
Plaintiff,) No. CR15-23-0356
)
vs.)
)
CHRISTOPHER BLACKBURN,)
)
Defendant.)
_____)

REPORTER'S TRANSCRIPT

The above-entitled matter came on for hearing
on the dates and times indicated herein at the Caribou
County Courthouse, Soda Springs, Idaho.

BEFORE: The Honorable Rick Carnaroli,
District Judge, Presiding.

APPEARANCES:

For the Plaintiff:

S. DOUGLAS WOOD
Caribou County Prosecuting Attorney
159 East 2nd South
Soda Springs, Idaho 83276

For the Defendant:

STRATTON P. LAGGIS
Law Office of Stratton P. Laggis, PLLC
850 E. Center Street, Suite C
Pocatello, Idaho 83201

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(Redactions were made at the request of Judge Carnaroli)

1 Soda Springs, Idaho; August 22, 2025

2 9:14 a.m.

3 THE COURT: This is Case Number CR15-23-356; State
4 of Idaho vs. Christopher Blackburn. Mr. Blackburn looks
5 like he's on the line along with Stratton Laggis, his
6 counsel. Doug Wood's here for the State of Idaho.

7 Doug and Stratton, as I look at the file, I see an
8 amended information, which is the precursor to a plea
9 agreement, but I don't see a plea agreement, guilty plea
10 advisory form, or that Christopher has signed off on
11 standard terms and conditions of probation to know what
12 probation might look like, if that's what he gets.

13 Do we want to reset this for another day so we can
14 get all the plea paperwork in?

15 MR. LAGGIS: Judge, I'll jump on that one. That is
16 my fault as far as the timing on that. We now have
17 everything signed, taken care of, and filed. It still
18 needs to be accepted through the system. I'm sure that
19 Mr. Wood would like to keep this case moving, and I know
20 that Slate would also. If there's any chance that we
21 can have those documents accepted, and if you'd be
22 willing to take a few minutes to review those, I know
23 that Slate and I would be fine to hang out on Zoom.

24 THE COURT: Yeah, I can come back to you. I'm kind
25 of in the middle of a mediation right now, trying to

1 multitask, but why don't we agree with Judge Brower when
2 I'd come back on.

3 Does Judge Brower take a 10:00 a.m. recess?

4 JUDGE CODY BROWER: I do. I can take it at 10:00 if
5 you'd like.

6 THE COURT: Okay. I can come back on at 10:00.
7 I'll leave this open and hit refresh here in a little
8 bit and see if I can get through that documentation and
9 we can do this at 10:00.

10 JUDGE CODY BROWER: And also --

11 MR. LAGGIS: We appreciate it.

12 JUDGE CODY BROWER: -- Liz just let me know, if you
13 want to do it right now, she's logging in right now and
14 could send you those. She just wanted to let you know.

15 THE COURT: Well, believe it or not, I actually
16 finger-read the guilty plea advisory form to make sure
17 that it's filled out in a way that I don't have a
18 question to ask Christopher while I have him on the
19 line. So I want to make sure he's completely answered
20 the guilty plea advisory form and none of his answers
21 raise any questions, so I will -- I'll need a little bit
22 of time to go through that paperwork, as well as the
23 plea agreement, so 10:00 o'clock sounds great for me.

24 JUDGE CODY BROWER: Sounds good, Judge.

25 THE COURT: All right. I'll be back.

1 MR. LAGGIS: Thank you, Judge.

2 THE COURT: Thank you.

3 (Recess at 9:18 a.m.)

4 THE COURT: We are on the record again in Case
5 Number CR15-23-0356; State of Idaho vs. Christopher
6 Blackburn. Mr. Blackburn is present via Zoom along with
7 his counsel, Stratton Laggis; and we've got Doug Wood,
8 prosecuting attorney for Caribou County, present in the
9 courtroom.

10 The Court's had a chance to look at the plea
11 paperwork, PSI face sheet, IDOC agreement of supervision
12 that it looks like Christopher signed off on, guilty
13 plea advisory form, which he reviewed, initialed on, and
14 filled out completely, and there's a binding Rule 11
15 plea agreement.

16 And for the record, Mr. Laggis, would you take us
17 through the terms of the plea agreement?

18 MR. LAGGIS: Yes, Judge.

19 The current charge will be amended to a felony
20 injury to child charge. Chris will plead guilty on that
21 felony injury to child charge. As the Court noted, this
22 is a binding agreement. We do have specific sentencing
23 recommendations, but as far as the determinate,
24 indeterminate, and resulting unified sentence, that will
25 be in the Court's discretion. The parties will be free

1 to argue.

2 The parties, as the big part of the binding
3 agreement, have agreed to a joint recommendation for the
4 Court that Chris go on a rider and the Court retain
5 jurisdiction. The Court would have imposition of court
6 fines and court costs in its discretion. Chris will pay
7 reasonable restitution but will still be entitled to
8 object to that amount should he feel that it is
9 unreasonable or unrelated to this matter.

10 As a term and condition of probation, Chris will
11 have no unsupervised contact with minor children, with
12 the exception of his biological daughter, and those
13 custody arrangements would be subject to any current or
14 potentially modified custody order in the future.

15 Also, as a term and condition of probation, any
16 contact that Chris would have with other minor children,
17 aside from his daughter, would be required to be
18 supervised by an adult who's familiar with the
19 above-entitled action and the circumstances.

20 The parties have agreed to extend the no-contact
21 order in this matter while the case is pending and
22 presumably until the end of a probationary period. And
23 then finally, Chris would be entitled to any credit for
24 time served.

25 And I think that wraps it up on our end, Judge.

1 THE COURT: Okay. Mr. Wood, is that the agreement?

2 MR. WOOD: It is, Your Honor.

3 THE COURT: All right. Well, Christopher, if you'd
4 unmute yourself, we need to talk a little bit.

5 How are you today?

6 THE DEFENDANT: Doing all right.

7 THE COURT: Okay. Well, I take it based on this
8 plea agreement you wish to change your plea today and
9 plead to the amended charge, which is stated in the
10 amended information filed the 6th of August of this
11 year. Have you seen that amended information?

12 THE DEFENDANT: I'm sorry. What was that one again?

13 THE COURT: Have you seen the amended criminal
14 information that was filed --

15 THE DEFENDANT: Yes.

16 THE COURT: -- as part of this plea agreement?

17 THE DEFENDANT: Yes.

18 THE COURT: Okay. And you're now charged with
19 injury to child, which is a felony offense, but it's not
20 a registrable sex offense. It carries a penalty of one
21 year and no more than ten years and a fine of 55 -- or
22 \$50,000 or both. You understand that; right?

23 THE DEFENDANT: Yes.

24 THE COURT: Okay. And you've discussed the -- and
25 you do wish to change your plea today; right? I kinda

1 cut you off on that one.

2 THE DEFENDANT: Yes.

3 THE COURT: Okay. And you've discussed with your
4 attorney the facts of your case, possible defenses you
5 might have, and the consequences of entering a guilty
6 plea to this particular charge?

7 THE DEFENDANT: I have.

8 THE COURT: Okay. And have you had enough time to
9 think about this or do you need any more?

10 THE DEFENDANT: No. I'm good to go.

11 THE COURT: Okay. And maximum sentence we went
12 over.

13 Now, this is a binding Rule 11 agreement. What
14 happens after I take a plea today is there will be a
15 presentence investigation report generated, and I'm
16 going to order that you do a psychosexual evaluation.
17 If there's something about that that causes me to reject
18 this plea agreement on the date of sentencing, you will
19 be allowed to withdraw your guilty plea. You understand
20 that?

21 THE DEFENDANT: Yes.

22 THE COURT: Okay. All right. To the charge of
23 injury to child that you are accused of on or about
24 August or September 2021 in Caribou County, Idaho, how
25 do you plead?

1 THE DEFENDANT: Guilty.

2 THE COURT: Okay. And this guilty plea advisory
3 form that I'm looking at here on my screen and had a
4 chance to review, did you fill that out with
5 Mr. Laggis's help?

6 THE DEFENDANT: Yes.

7 THE COURT: And was he able to help you understand
8 any questions that weren't particularly clear?

9 THE DEFENDANT: Yes, he did.

10 THE COURT: Okay. So all your answers, I take it,
11 on this form are true, complete, and accurate at this
12 time?

13 THE DEFENDANT: They are.

14 THE COURT: Okay. Have you ever been treated or
15 counseled for any mental health issues?

16 THE DEFENDANT: No.

17 THE COURT: Have you taken any alcohol, drugs, or
18 medication not prescribed to you within the last
19 48 hours?

20 THE DEFENDANT: No.

21 THE COURT: You're thinking clearly today then?

22 THE DEFENDANT: Yes.

23 THE COURT: Okay. You've been represented by
24 Mr. Laggis throughout this case. Are you satisfied with
25 the work he's done for you?

1 THE DEFENDANT: Yep. He's an awesome attorney.

2 THE COURT: Are there any motions or things that
3 you'd like for him to do before I accept a guilty plea
4 from you?

5 THE DEFENDANT: No.

6 THE COURT: Your constitutional rights as a criminal
7 are listed in that guilty plea advisory form on the
8 first two pages as you'll recall, and you initialled off
9 on those. As you think about it, do you understand your
10 constitutional rights?

11 THE DEFENDANT: Yes.

12 THE COURT: And do you claim anybody's violated any
13 of your constitutional rights at any point in this case?

14 THE DEFENDANT: No.

15 THE COURT: Okay. Do you understand that you'll
16 have to waive some of your constitutional rights right
17 now in order for me to accept your guilty plea?

18 THE DEFENDANT: Yes.

19 THE COURT: You're giving up your right to a jury
20 trial, your right to confront and cross-examine the
21 witnesses against you, your right to subpoena witnesses
22 to testify at your trial, your choice on whether you
23 wish to testify or not at your trial, and obviously your
24 right against self-incrimination; correct?

25 THE DEFENDANT: Correct.

1 THE COURT: Okay. Has anybody threatened you or
2 done anything to make you plead guilty against your
3 will?

4 THE DEFENDANT: No.

5 THE COURT: Has anybody promised you anything in
6 return for your guilty plea here today that's not
7 contained in that written plea agreement I'm looking at?

8 THE DEFENDANT: No.

9 THE COURT: Okay. Do you admit the truth of the
10 charge in the prosecuting attorney's information that
11 accuses you of injury to child on or about August or
12 September 2021 in Caribou County, Idaho? Do you admit
13 that's a true charge?

14 THE DEFENDANT: Yes.

15 THE COURT: Are you pleading guilty freely,
16 voluntarily, and knowingly today because you are guilty
17 of what you're accused of in Count 1 of the new amended
18 criminal information?

19 THE DEFENDANT: Yes.

20 THE COURT: Tell me what you did to commit that
21 crime.

22 THE DEFENDANT: [REDACTED] asked if she could sleep in
23 the tent with me. I told her no at first and that she
24 would need to ask her mom first. She asked her mom, and
25 her mom gave approval. I am pleading guilty to her

1 safety and well-being being at risk.

2 THE COURT: Okay. Okay. Count 1 alleges that under
3 circumstances likely to produce great bodily harm or
4 death that you did willfully cause or permit the child
5 to suffer unjustifiable physical pain or mental
6 suffering. Are you admitting that you did that in the
7 course of your conduct with that child?

8 THE DEFENDANT: Yes.

9 THE COURT: All right. Based on your answers to my
10 questions today, I'll find you understand the crime to
11 which you're pleading guilty and the potential
12 consequences for doing so. I'll accept your plea as
13 having been knowingly and voluntarily given with the
14 assistance of counsel, and I'll direct the clerk to
15 enter your plea on the record at this time.

16 Based on that plea, I'm going to find you guilty of
17 this crime. And as I mentioned earlier, I'm going to
18 order a presentence investigation that will include a
19 psychosexual evaluation. It's going to take a little
20 bit of time for that psychosexual evaluation to get
21 done.

22 Does the State or defense have a preference as to
23 the evaluator? Dr. Hatzenbuehler seems to be doing most
24 of them that I'm seeing down this end of the state.

25 MR. LAGGIS: If we can stay with Dr. Hatzenbuehler,

1 that'd be great, Judge. That was who we discussed
2 during our mediation, at least on the defense side of
3 things, and kind of who we anticipated doing that eval.

4 THE COURT: Okay. Liz, it takes about 90 to
5 120 days to get an evaluation back from
6 Dr. Hatzenbuehler. I think she's pretty busy, number
7 one; and number two, I think it's a pretty
8 labor-intensive job that she does on each of these.

9 So we are at August 21 [sic] today. When would be
10 the first available date in November, Liz, that we could
11 set Christopher for sentencing?

12 JUDGE CODY BROWER: November 14th, Your Honor.

13 THE COURT: November 14th? Okay.

14 Be November 14th, 9:00 a.m., in Caribou County. And
15 I will make it a point to be present. We're all going
16 to have to be present there for that. We're not going
17 to be Zooming for that, and I will be down there.

18 So November 14, 9:00 a.m., or as soon after that as
19 we can be heard. We'll just plug into where we fit on
20 Judge Brower's calendar.

21 We can actually go in on the 10:00 o'clock recess if
22 you'd prefer, Judge Brower. Do you want us to start at
23 10:00?

24 JUDGE CODY BROWER: No. I don't mind just taking it
25 up first.

1 THE COURT: Okay. All right. Well, we'll set it at
2 9:00 o'clock then.

3 And, Christopher, I don't know if there's anybody
4 there from Department of Corrections, but they can talk
5 to you about this presentence process and who to get in
6 touch with while you're appearing via Zoom. So you'll
7 have to get with Stratton and figure out how to get a
8 hold of the Department of Corrections to get started on
9 this. Okay?

10 THE DEFENDANT: Okay. Sounds good.

11 THE COURT: And do you have a pencil or a piece of
12 paper there? I think we could give you a phone number
13 to get a hold of.

14 THE DEFENDANT: That works.

15 THE COURT: Are you ready?

16 THE DEFENDANT: Yeah.

17 THE COURT: It's 208-237-9154.

18 THE DEFENDANT: Okay. Got it.

19 THE COURT: Okay. And just ask for the duty
20 officer, tell them you need a presentence investigation
21 for a report out of Caribou -- for a case out of Caribou
22 County, and they'll figure out who you are and how to
23 help you. Okay?

24 THE DEFENDANT: Okay. Thank you.

25 THE COURT: All right. Stay in touch with

1 Mr. Laggis. Make sure he's always got a good address
2 and phone number for you.

3 The one thing about the psychosexual evaluation,
4 because it's possible that incriminating questions get
5 asked, you are entitled to have Mr. Laggis present with
6 you for that evaluation and you can talk to him about
7 it. You can actually decline. Even though I'm ordering
8 you to do it, you can decline going through that
9 evaluation. And that's a personal decision for you to
10 make with the advice of counsel.

11 But invariably, incriminating questions get asked
12 and you could end up accidentally answering a question
13 that incriminates you to another crime that we're not
14 talking about here. Okay? So you have to be really
15 careful about that. Spend some time talking to Stratton
16 about your rights in that respect. Okay?

17 THE DEFENDANT: Okay.

18 THE COURT: All right. Anything further, Stratton?

19 MR. LAGGIS: No, Judge, and appreciate the input on
20 that. Chris and I covered that, so I think we're good
21 there, but nothing further on my end and appreciate you
22 accommodating this morning again too.

23 THE COURT: Doug Wood, anything from you, sir?

24 MR. WOOD: No. Thank you, Your Honor. Have a good
25 day.

1 THE COURT: Okay. All right. We're adjourned on
2 this particular case, so you're back working with Judge
3 Brower.

4 Thank you, Judge.

5 JUDGE CODY BROWER: Thank you.

6 And actually, Judge Carnaroli, before you go, just
7 for my own information, would you give me that phone
8 number again you have them call?

9 THE COURT: You bet. 208 --

10 JUDGE CODY BROWER: Okay.

11 THE COURT: -- 237-9154.

12 JUDGE CODY BROWER: All right. I'm glad I asked,
13 because I had 9194.

14 THE COURT: Okay.

15 JUDGE CODY BROWER: All right. Thank you.

16 THE COURT: Well, I wonder if I've got the wrong
17 number here. This is a new piece of paper I've been
18 given. You might have the right one.

19 JUDGE CODY BROWER: No. This is the first time I
20 had the number, so I'll take it from you.

21 THE COURT: Okay. All right. Thank you very much.
22 Have a great day.

23 JUDGE CODY BROWER: You too.

24 (Proceedings held 08-22-2025 concluded at 10:16 a.m.)

25 -ooOoo-

1 Soda Springs, Idaho; January 9, 2026

2 3:19 p.m.

3 THE COURT: Okay. We are on the record in Case
4 Number CR15-23-0356; State of Idaho vs. Christopher
5 Blackburn. Mr. Blackburn's present with counsel,
6 Stratton Laggis. We've got Doug Wood here on behalf of
7 the State of Idaho.

8 Today is the day set for sentencing and gotta go
9 over a couple things here first. It looks like a
10 presentence report and psychosexual evaluation came in
11 near the first of the year. The evaluation on the 31st
12 of December; the presentence report on the 2nd of
13 January of this year. Psychosexual's 48 pages long.
14 The presentence is 81 pages long. I've had a chance to
15 read both of those.

16 Christopher, have you had a chance to read those
17 completely?

18 THE DEFENDANT: I have.

19 THE COURT: Have you had a chance to talk about
20 those reports with Mr. Laggis?

21 THE DEFENDANT: I have.

22 THE COURT: All right. And, Mr. Laggis, are there
23 any corrections to be noted in the presentence report?

24 MR. LAGGIS: There are a handful, Judge.

25 I do have one preliminary matter. It involves if

1 the Court's willing to do a couple-minute conversation
2 in chambers before we get into the middle of this.

3 THE COURT: Okay. If it's about the sentencing
4 packet that was filed today, 44 pages' worth, I have had
5 a chance to read through it entirely.

6 MR. LAGGIS: It is not about that.

7 THE COURT: Okay.

8 MR. LAGGIS: It is something different.

9 THE COURT: All right. Well, let's take a moment in
10 place here. We'll go into recess for a moment.

11 And, Mr. Laggis, Mr. Wood, come on back.

12 (Discussion held off the record.)

13 THE COURT: Okay. We are on the record in Case
14 Number CR15-23-0356, State of Idaho vs. Christopher
15 Blackburn. Christopher is still present with counsel,
16 Stratton Laggis, and Doug Wood is here for the State.

17 Again, we're set for sentencing. I had a chance to
18 talk to counsel for both sides off the record in
19 chambers, and they had the chance to come out and report
20 to you what we talked about.

21 We were at the presentence report.

22 Mr. Laggis, are there any corrections that need to
23 be brought to my attention?

24 MR. LAGGIS: Yes, Judge, we have a handful.

25 Page 1 of the PSI report, the first paragraph, last

1 sentence, the report detailed that "a female identified
2 as Kylee [REDACTED]." It should be [REDACTED], [REDACTED].

3 THE COURT: Okay.

4 MR. LAGGIS: Page 4 of the report, the fifth
5 paragraph down that starts with "This betrayal," the
6 second sentence that discusses "therapy for myself and
7 my three youngest daughters," that's related to the
8 recording that we discussed in chambers as far as
9 alleged sexual abuse from the father, Rick. And Slate's
10 position is that the therapy and the counseling is
11 related to those acts rather than the allegation against
12 him.

13 THE COURT: Okay.

14 MR. LAGGIS: Also page 4 of the report in
15 Defendant's Version, Slate -- on the first sentence of
16 that, "In late August or September, I was on a camping
17 trip," he doesn't recall the specific time frame on
18 that. And then the second change in that same sentence,
19 it says, "no ex-wife's." It's "now ex-wife's," so a
20 grammatical change there.

21 THE COURT: Okay.

22 MR. LAGGIS: Page 7 of the report, in the first
23 portion of that, which is a carryover from page 6, the
24 Emotional and Personal section where Slate "received
25 mental health treatment off and on for the past three

1 years; however, never on a consistent basis and could
2 not recall the provider on that," it should be over the
3 past four to five years.

4 THE COURT: Okay.

5 MR. LAGGIS: He does not recall the provider name
6 because his recollection is that provider was through
7 his ex-wife's employer or work. And then -- I'm sorry.
8 That was for the first treatment provider. The second
9 treatment provider was Josette Holly, and then there was
10 a third treatment provider, David Dodini at Kane
11 Counseling. So those are at least two out of the three
12 different providers.

13 THE COURT: Okay.

14 MR. LAGGIS: Also page 7 in the Attitudes and
15 Orientation section, the first bullet point, Slate wants
16 to indicate again that he's taking accountability as far
17 as pleading on the charge and putting Ms. [REDACTED] in that
18 position as far as spending a night in the tent with
19 him. So he does want to reiterate the accountability
20 portion of that.

21 Page 7 also in the Family and Marital section, the
22 fourth bullet point from the bottom, one daughter,
23 [REDACTED]; the age should be four rather
24 than three.

25 THE COURT: Okay.

1 MR. LAGGIS: Page 10 of the report, the second
2 paragraph in the Prior Record Summary, it indicates
3 Mr. Blackburn reported that he received charges sexual
4 in nature that were dismissed in 2022. That's related
5 to the Utah portion of the investigation in this same
6 incident, and Slate indicates that he was never charged
7 in Utah. Everything was closed down there as far as
8 he's aware. Obviously at some point there was
9 communication with Idaho, which is why we're here now.

10 Also, page 10, a misspelling on Blackburn in the
11 Values and Outlook section. Very first two words,
12 Blackburn is misspelled.

13 Page 11, up at the top of the report, again a
14 grammatical change. The second sentence there, "This
15 case has always been one-sided" rather than "on-sided."

16 THE COURT: Okay.

17 MR. LAGGIS: Page 9 of the psychosexual evaluation,
18 Description of Current Offense, the second full
19 paragraph, there's an indication that there was an Idaho
20 Health and Welfare report. Slate does not believe that
21 there ever was an Idaho report. I don't believe he had
22 contact from Idaho, and certainly never saw a report
23 from them. He did have interactions with Utah Health
24 and Welfare, and we are aware of information in reports
25 in Utah but not Idaho.

1 THE COURT: Okay.

2 MR. LAGGIS: Page 10 of the PSI report, let me see,
3 the second full paragraph. "During my interview with
4 Mr. Blackburn."

5 THE COURT: Okay.

6 MR. LAGGIS: And then getting to the date, September
7 of 2024. Involving a minor in Idaho in September of
8 2024, same as the earlier correction. He's not sure
9 that that date is accurate, but, again, does not have a
10 solid date to rely on for the Court or to provide the
11 Court.

12 THE COURT: Okay.

13 MR. LAGGIS: Page 11 of the PSE report, first full
14 paragraph, second sentence, she was the oldest of six
15 siblings. Again, a grammatical change there.

16 And then our final change, page 38 of the PSE
17 report, this is one of Dr. Hatzenbuehler's
18 recommendations, that he should not be in the presence
19 of young or underage females, including his daughter,
20 without supervision. We disagree with that, number one,
21 and that was to a certain extent a component of our
22 mediation. But as the Court is well aware, that's,
23 frankly, something that will be left to the Utah courts
24 and determine down there in Utah with anything related
25 to custody, but he disagrees with that opinion of

1 Dr. Hatzenbuehler's.

2 THE COURT: Okay.

3 With those corrections, based on your knowledge of
4 the case, the Rule 11 plea agreement, and presentence
5 investigation report, what are your recommendations for
6 Christopher?

7 MR. LAGGIS: After talking about all of this with
8 Slate again, specifically the information that he wanted
9 me to go into with what sentencing recommendations, at
10 this point -- where the Court has indicated that it will
11 accept our binding plea agreement and intends to send
12 Slate on a retained jurisdiction program, presumably
13 after doing well with coming back out on probation on
14 the back side of that -- he and I are comfortable
15 recommending that the Court follow those recommendations
16 rather than maybe addressing a lot of other issues and
17 items that potentially stir things up and create other
18 problems.

19 So if that is the direction the Court is inclined to
20 go, I'm going to keep it short and sweet. We're going
21 to ask you to follow the recommendations in our mediated
22 agreement. I expect Slate to do very, very well on that
23 program and come out with a good recommendation for a
24 rider review hearing.

25 He had been employed full-time previously with law

1 enforcement. That of course changed based off the
2 allegations. He's done what he can in the meantime with
3 employment. He's maintained various forms of employment
4 over the course of the last couple years while all of
5 this has been going on. He's living at home with his
6 parents. He has very, very good family support.

7 And then a couple of the other big-ticket items for
8 the Court to hopefully feel a little more comfortable
9 going this route and accepting our agreement, again,
10 from the sentencing packet submitted, the Court, I'm
11 sure, can see the PSE report, the treatment he went
12 through, all of the counseling records. And point being
13 there, once the allegations came about, he didn't sit on
14 his hands and do nothing. And a lot of that was, don't
15 get me wrong, geared towards self-health and self-help
16 related to some of the mental health and counseling
17 sorts of things, but point being he was proactive and
18 addressing it as much as he could be, cooperated with
19 law enforcement down in Utah. Again, had the
20 understanding that nothing was going to be pursued.
21 And, again, nothing was down in Utah.

22 But at any rate, again, reiterating that regardless
23 of all of that, we have the change of plea. The Court's
24 gone through the factual basis with that. And Slate
25 does want to reiterate that accountability, again, for

1 probably a third or a fourth time in that sense. He's
2 looking forward to this as much as he can. And as much
3 of a huge life change as it is for him, to have it as an
4 opportunity to learn some new things. And whether
5 that's from Dr. Hatzenbuehler's recommendations and
6 thoughts as a way to CYA for Slate and protect himself
7 from allegations in the future or whether it's to learn
8 different coping skills and mechanisms to avoid
9 situations or allegations and certainly any other
10 conduct, which I don't expect would ever be a problem
11 with him like this in the future.

12 It's a very, very tough change for him, but going
13 through everything and analyzing a lot of the other risk
14 that comes with the other side of it, he does feel
15 comfortable that this is probably the best thing under
16 the circumstances.

17 So at any rate, we'll leave fines and fees to the
18 Court's discretion. We'd ask the Court, again, to
19 follow our recommendations in the plea agreement for the
20 retained jurisdiction program.

21 As far as an underlying sentence, suspended
22 sentence, I never quite know what the right answer is
23 with these cases, but with a felony injury to child
24 charge that we're dealing with, we'd suggest maybe a
25 two-year determinate sentence and a two-year

1 indeterminate sentence to be suspended. Again,
2 presumable successful completion on the rider and
3 hopefully we're never dealing with that again. I expect
4 him to do very, very well from his lack of issues, his
5 lack of prior criminal history, and everything that he's
6 done to date. I think that this will be an extension of
7 good, proactive, positive progress on his side of
8 things. And hopefully everybody all the way around can
9 move on from this and let life go on a little bit.
10 There's certainly value there for everyone, let alone
11 for Slate. But I think that's one of the big areas that
12 he's looking forward to, is having a little peace of
13 mind that this is done and moving on with his life.

14 So at any rate, if the Court has any questions, I'm
15 more than happy to answer them, but I think I'll leave
16 it alone from there.

17 THE COURT: Thank you.

18 Mr. Wood.

19 MR. WOOD: Thank you, Your Honor.

20 Your Honor, I too am going to ask the Court to go
21 along with our mediated plea agreement, Rule 11 binding
22 plea agreement. That was carefully thought out.
23 Mr. Laggis is correct. We tried to address what we saw
24 as potential issues in that, and so I appreciate the
25 Court giving that consideration.

1 Your Honor, as I go through this case, these are the
2 types of cases I absolutely hate because there's no
3 winners. I don't ever walk away from a case like this
4 going, "Right on. I got my pound of flesh today in
5 court." I walk away heavy-hearted knowing that families
6 have been torn apart, that victims are going to be left
7 dealing with this for who knows how long, and that in
8 many ways the justice system can't adequately address
9 all the wrongs that have been perpetrated.

10 When I look at aggravating factors in a case like
11 this, what jumps out to me is this was someone who was
12 part of their family, a brother-in-law that was
13 considered the brother, the older brother. He was
14 beloved by the whole family. Obviously trusted. Add to
15 that that at the time he was a police -- a law
16 enforcement officer, a police officer, in American Fork.
17 Those carry with them higher standards, higher
18 expectations.

19 And so the sense of betrayal I think's real. When
20 you trust somebody with something as precious as your
21 family or you are around somebody that you trust and bad
22 things happen, yeah, that trust is going to be gone.
23 There's going to be a sense of loss. There's going to
24 be a sense of betrayal. I don't know you ever get
25 around that. I agree with Mr. Laggis. I hope that all

1 parties can move past that and someday find better
2 things in life.

3 Another aggravating factor, Your Honor, is the age
4 of the victim. Only 13 at the age -- or at the time of
5 the incident. She's had to go through a lot. I would
6 ask the Court to allow her to provide a victim's impact
7 statement here in a minute, and you'll hear just how
8 problematic this has been for her. I've spent time with
9 her where she's been in tears. She doesn't want to be
10 here. She didn't ask to be here.

11 And it's my job to believe her and to represent her,
12 and so when I see things like the defendant's version in
13 the PSI on page 5, where he doesn't admit to anything
14 other than, "I went to sleep and woke to [REDACTED] tapping
15 my arm stating she wanted to go into the cabin," that's
16 troubling to me. Combine that with the paragraph
17 underneath, "While discussing the crime, Mr. Blackburn
18 indicated that he was advised by his attorney to provide
19 a guilty plea instead of an Alford plea, although he is
20 maintaining his innocence. He reported that by pleading
21 guilty he had the option of the retained jurisdiction
22 program, whereas if he took the case to trial he could
23 potentially be -- receive a prison sentence."

24 Almost sounds like victim blaming, attorney blaming,
25 blaming everywhere else except for, "You know what? I

1 fouled one off." It's awfully hard to learn from
2 mistakes if a person doesn't take accountability and
3 acknowledge that, "You know what? I need to change some
4 of my behavior."

5 And so it was disheartening for me to read through
6 this PSI. And I don't see the accountability there. I
7 see -- I think Mr. Blackburn wants to take
8 accountability, but he's talked out of it or he's, for
9 some reason, backing away, just shy of saying, "Yeah. I
10 need to fix what's broken."

11 That being what it is, Your Honor, there's no way of
12 getting around procedurally where we're at. I filed an
13 amended criminal information that states, "The
14 defendant, Christopher Blackburn, on or about August or
15 September 2021, in the County of Caribou, State of
16 Idaho, under circumstances likely to produce great
17 bodily harm or death did willfully cause or permit the
18 child, Jane Doe, to suffer unjustifiable physical pain
19 or mental suffering." He entered a knowing and
20 voluntary plea to that.

21 So while I appreciate the letters of support -- I'm
22 actually tickled that Mr. Blackburn has a support
23 group -- but I take umbrage with some of the statements
24 in there that he would never hurt anybody or "The judge
25 doesn't know -- the Court doesn't know him the way that

1 we know him or as deeply as we know him."

2 I think the Court has all kinds of information here.
3 And I'm not going to get into the relationship, all the
4 issues there that contradict those statements, but I
5 think the Court has all those and can weigh them
6 appropriately.

7 As I look at the sentencing factors, of course the
8 foremost predominant factor to give weight to is the
9 protection of society. Unfortunately, this is one of
10 those cases that that needs to be emphasized. That is a
11 lot of the reason why we have a plea agreement where
12 there is an agreement to a retained jurisdiction, trying
13 to strike that balance where he can get some help,
14 hopefully acknowledge what he's done, deal with it, and
15 move on at the same time -- meeting the factors of
16 deterrence, punishment, and protection of society all at
17 the same time.

18 This is a case that has caused a lot of therapeutic
19 necessity for the victim. I hear what he says about the
20 PSI. He assumes that the PSI is talking about that
21 therapy being for some other incident. He doesn't know
22 that. He's not there in the room. He hasn't seen
23 [REDACTED] tears.

24 So while we haven't made a motion for restitution
25 today, they have asked me to request that that be left

1 open for them to seek some restitution for that. I
2 think if you look back at the letter, the victim impact
3 statement provided by [REDACTED] mother, Jennifer
4 Albrecht, she indicates that this has cost them quite a
5 bit of money. And at first she was -- well, I'll just
6 leave it at that.

7 Your Honor, looking at the four factors of
8 sentencing, I think where I'm at in recommending the
9 underlying sentence is five and five. I think we need a
10 significant period of supervision. I worry about
11 Mr. Blackburn slipping up, especially where I don't see
12 him taking full accountability and acknowledging, "Yeah,
13 I got to change some things."

14 That's concerning to me, and so I think we need a
15 longer period of supervision to make sure that he's well
16 on the way to not ever having these types of issues
17 again. The primary concern is we don't want anybody
18 else to go through this. We don't want him to go
19 through this again. So that's the State's
20 recommendations.

21 If the Court would allow, I would ask that [REDACTED]
22 be given the opportunity to provide a victim's impact
23 statement.

24 THE COURT: Absolutely.

25 MR. WOOD: Thank you.

1 THE COURT: Why don't you have [REDACTED] come up and
2 sit next to you there.

3 [REDACTED], would you start by stating your full name,
4 please.

5 MS. [REDACTED]: [REDACTED].

6 THE COURT: All right. And your last name is
7 spelled [REDACTED]?

8 MS. [REDACTED]: Yes.

9 THE COURT: All right. Thank you.

10 MS. [REDACTED]: Of course.

11 What happened to me did not end when the incident
12 itself ended. It followed me into every part of my life
13 and continues to affect how I think, feel, and function
14 every day. The impact it has -- has been overwhelming,
15 long-lasting, and deeply damaging. I am still actively
16 trying to heal from it today.

17 Emotionally this trauma completely changed how I
18 experienced the world. I became severely depressed and
19 anxious in ways I had never known before. My anxiety
20 grew so intense that I constantly felt watched, unsafe,
21 or threatened. Even when I was around people who would
22 never hurt me or harmed me before, I lived in a state of
23 constant fear and hypervigilance, always anticipating
24 danger and struggling to feel at ease anywhere. I
25 developed severe PTSD symptoms that now affect any form

1 of intimacy or close interactions. Even situations that
2 should feel safe or comforting cause intense anxiety and
3 panic, the emotional distress -- and emotional distress.

4 My body reacts as if I am endangered even when my
5 mind knows I'm not. These reactions are overwhelming
6 and uncontrollable and they have made intimacy
7 frightening instead of comforting. This has deeply
8 affected my ability to form healthy relationships and
9 has left me feeling isolated and afraid of closeness.

10 As the trauma continued, life often felt unbearable.
11 There were many nights when the emotional pain, fear,
12 and exhaustion became so heavy that I cried myself to
13 sleep because I did not know how else to release what I
14 was feeling. Those moments were deeply lonely, and I
15 felt trapped in my own thoughts with no escape from the
16 weight I was carrying.

17 There were times when the distress became so
18 overwhelming that I experienced suicidal thoughts.
19 These thoughts did not come from the desire to die but
20 from feeling desperate to escape the pain and fear that
21 consumed me. I sometimes threatened to harm myself
22 because I did not know how else to communicate how
23 deeply I was struggling or how close I felt to breaking.
24 This trauma also changed my emotional regulation. I
25 became angry more often and lost patience with people

1 around me. I had never -- I had very little
2 emotionally -- emotional energy left because I was using
3 everything I had simply to survive and cope with the
4 harm caused by Slate.

5 I did not have the capacity to be as patient
6 or -- patient or understanding as I once was and this
7 caused strain in my relationships. This anger was not
8 who I was. It was a response to trauma and exhaustion.
9 My sense of self-worth was deeply damaged. I began to
10 believe that my value was limited to my body rather than
11 who I was as a person. I developed severe insecurity
12 and body dysmorphia, constantly criticizing myself and
13 believing I had to look a certain way to be worthy of
14 respect or love. This led to disordered eating and
15 restricting food, further harming both my physical and
16 mental health.

17 My school and work life also became places of fear
18 rather than safety. Environments that should have felt
19 structured, supportive, and welcoming instead felt
20 unsafe and emotionally threatening. I lived with
21 constant anxiety about who I might run into, which made
22 it difficult to focus, feel comfortable, or perform at
23 my best.

24 I have had negative encounters with people connected
25 to Slate, including family members of his and his own

1 friends. These interactions were hateful, discouraging,
2 and emotionally distressing. Instead of feeling
3 supported or protected, I felt judged, blamed, and
4 further harmed. These experiences intensified my fear,
5 anxiety, and sense of isolation, and they re-enforced
6 the feeling that I was not safe even in public or
7 professional spaces. Because of this, I often felt
8 unwelcomed and unsupported in places where I was trying
9 to work, learn, and rebuild my life.

10 The emotional toll of constantly being on guard made
11 it harder to succeed academically and professionally,
12 and it added another layer of stress to an already
13 overwhelmingly stressful situation. Physically the
14 prolonged stress and anxiety took a constant toll on my
15 body. I experienced frequent headaches, stomach
16 problems, difficulty sleeping, and ongoing fatigue. My
17 immune system weakened and I became sick often because
18 my body was under continuous stress. These symptoms
19 were daily reminders of the trauma I was living with.

20 My mental health declined to such a severe degree
21 that I required medication for anxiety and depression.
22 I have been going to therapy for four years. Therapy
23 has helped me survive and begin healing, but recovery
24 has not been easy nor quick. Even now I work every day
25 to manage symptoms, rebuild my sense of safety, and

1 learn how to live without constant fear. What happened
2 to me took away my sense of safety, trust, patience, and
3 self-worth. It changed how I experienced intimacy, how
4 I function at school and work, and how I move through
5 the world. It forced me to carry fear and emotional
6 pain that were never mine to carry.

7 It's had a lot of impact on me. It's been really
8 hard and stressful in ways that are -- they're
9 undescrivable. I've been to places where I should feel
10 safe, where I should feel comforted, and I've been
11 attacked by people of his family and friends, saying
12 things about me and my family, trying to discourage me,
13 been told that I've been lying and that I'm just trying
14 to frame him for something that he's not done. When in
15 reality, it's something that's been affecting me for
16 many years and something that's been very difficult to
17 deal with, something that's talked about daily with my
18 mom to try to cope, to try to feel better, to try to
19 feel safe, to try to feel welcomed and worthy of being
20 in this life. It's made me feel as though any
21 relationship I have is not for who I am but for my body,
22 for what people want from me instead of wanting to be in
23 a good relationship where I can be myself.

24 It's felt at times that I'm so scared to even talk
25 to people because I feel like there's people that are

1 out there trying to like make things worse and trying to
2 do harmful things like that to me. Slate was someone
3 that I considered my own brother. He was my brother. I
4 met him when I was four years old, the age that his
5 daughter is now. And he's been my brother and he has
6 been the person that I trusted and cared about deeply.
7 He was someone that I had never had a thought in my mind
8 would ever hurt me. When that -- so when everything
9 happened, it was devastating. I would never have
10 expected him to do such things to me, nor my sisters.

11 It has affected my entire family: my mom, my
12 sisters, my aunts, my uncles, my cousins. All of them
13 even so close to Slate, never expecting him to do
14 something like this. It has changed our lives severely.
15 I just don't want it to happen to anybody else. It's
16 not like it's easy for any of us. It's not easy for
17 him. It's not easy for his family. It's not easy for
18 me. It's not easy for my family. It's not fair to
19 anyone. I just don't want it to happen again. I don't
20 want this behavior to continue.

21 THE COURT: Thank you.

22 Mr. Wood, anything further?

23 MR. WOOD: No, Your Honor.

24 THE COURT: Mr. Laggis, before I talk to your
25 client, anything?

1 (Mr. Laggis confers with defendant off the record.)

2 MR. LAGGIS: Nothing further on my end, Judge.

3 Thank you.

4 THE COURT: Okay. And, Christopher, I know you go
5 by -- is it Slate? Is there anything you'd like to say
6 today? You have an opportunity to speak, but you don't
7 have to.

8 (Mr. Laggis confers with defendant off the record.)

9 THE DEFENDANT: Nothing further, Your Honor. Thank
10 you.

11 THE COURT: All right. Well, I've been at this
12 business of being a judge for almost 21 years now. The
13 last 8 have been in district court, but even in
14 magistrate court, cases like these came through and we'd
15 have preliminary hearings, and I'd hear young people --
16 typically it's young ladies testify, sometimes boys
17 though -- testify about things that happened to them,
18 put to the test in preliminary hearings when I was a
19 magistrate for 13 years.

20 Probably I've had a dozen trials I think in the last
21 eight years involving allegations like these. Suffice
22 it to say that cases like these tear apart families for
23 sure and alter lives all the way around. It's kind of
24 like dropping a rock in a pond. The ripple effect is
25 sometimes beyond that which you would expect. There's a

1 lot of hurt in this room. There's going to be a lot of
2 hurt going forward too.

3 You folks came to me with a binding Rule 11
4 agreement. And the lawyers know, you folks here
5 observing today don't, they know that I don't like these
6 binding Rule 11 agreements. I'd rather have folks air
7 it out in a trial, have a jury make a finding of guilt
8 or not guilty, and I get to hear the testimony and get a
9 little more information about what happened than I'm
10 going to get. But that's not in the cards today, and I
11 committed to the lawyers, which means a commitment to
12 Slate and to the victim, that I would go along with the
13 binding Rule 11 agreement whether I like it or not.

14 Slate probably knows in talking with his counsel the
15 type of sentences that I hand out in cases like these.
16 Pretty stiff. Pretty long. They always go up on appeal
17 being challenged as being excessive. We have some
18 sideboards on this, and one of the sideboards is a
19 retained jurisdiction and a rider.

20 Well, Slate, that's not a picnic. A rider is
21 prison. You'll be going to prison for up to 365 days on
22 that rider and you'll go from this courtroom today in
23 handcuffs headed for the prison. You're not going to
24 get a ride back home and come back another day to get
25 transported. The marshal is going to take you in

1 custody. I'm sure Mr. Laggis prepared you for that.

2 On that rider, they do offer some programming. It's
3 really geared towards getting you ready to be successful
4 on probation if you can go through that programming and
5 you come out the door ready for probation. If you fail
6 in that program, the sentence that you're going to get
7 today could be imposed and then you just stay at the
8 penitentiary and you move from the rider facility to
9 another one. So what you do with that time you have up
10 there is important.

11 Mr. Laggis may have prepared you for this or not,
12 but I'm going to tell you when you go on the rider, the
13 little rules are the big rules. If they have you out in
14 the community working and you cross the street
15 mid-block, you'll get written up. If you share
16 commissary with other inmates, you're going to get
17 written up. If you don't engage in the treatment that
18 they offer you, you're going to get written up. If you
19 get into it with another inmate and there's a shoving
20 match, usually both of them will get written up. They
21 don't try and figure out who's at fault. So if you
22 don't get along with people, you'll get written up. If
23 you're tired and want to get in the bunk in the
24 afternoon, you'll get written up. You get enough of
25 those write-ups they're going to recommend that you

1 stay. So your behavior is important. And you're going
2 to meet some people you don't like. You have to figure
3 out how to get along with them.

4 Looking at this presentence report, I have to make
5 note of some things here and I also have to make note of
6 the sentencing packet that I received. There are
7 friends, family members who think very highly of you who
8 can't imagine that you did the things that you have
9 admitted. By pleading guilty, you did. You admitted
10 injury to child, and I accepted that admission and that
11 it had factual basis. So you admitted that you hurt
12 that young lady. And we can waltz around it and say,
13 "Well, I really didn't do it. I passed my polygraph.
14 I'm just doing this to kind of hedge my bets because I
15 don't want to risk going to prison for a long, long
16 time." I accepted your admission and you admitted that
17 you hurt the young lady. That's what you'll be
18 sentenced for.

19 But 44 pages' worth of -- I mean, there's stuff from
20 counselors. Mr. Laggis put together a pretty good
21 packet that I had the time and opportunity to read
22 through completely today before we got started. But I
23 also read that presentence report and the polygraph, and
24 Dr. Hatzenbuehler has you as low risk. The polygraph
25 has you as being truthful. Polygraphs aren't really

1 evidence. They're something -- they're a tool that we
2 use, but the indicators are -- kind of weighed in your
3 favor.

4 They're not recommending any substance abuse
5 treatment for you, which is kind of refreshing in this
6 day and age because everybody seems to be on drugs that
7 I see in this courtroom and the other courtrooms I go
8 to. You have no mental illness diagnosis, but there is
9 a recommendation for counseling for you. While you're
10 on that rider, there may be some counseling available to
11 you up there that you can take advantage of. I'm not
12 sure exactly what they have up there. I know they have
13 some behavioral therapy kind of programs for you to go
14 through in groups. Whether they have one-on-one, I
15 don't know. You'll go through what's called RDU, and
16 that's Receiving and Diagnostic Unit, and they'll try
17 and figure out what it is that you need, both on the
18 physical and mental health side.

19 Dr. Hatzenbuehler doesn't have you as a candidate
20 for sex offender treatment, though she thinks counseling
21 might be of benefit to you. I have a probation
22 recommendation out of the probation people, which is
23 kind of rare in this type of case. I won't go into the
24 details of the testing that you took, but you came out
25 average and low risk on the sex offense testing that Dr.

1 Hatzenbuehler administered. But you committed to do the
2 rider, so that's the way we're going to go.

3 The things I have to worry about, like Mr. Wood
4 noted, protection of society, your rehabilitation,
5 deterrence of you and others -- that's really what this
6 sentence is going to be about, is the deterrence of you
7 and others when I get to the numbers portion of it --
8 restitution and punishment. I mean, those are the
9 things I have to look at. Those are the purposes of
10 sentencing or the factors I've got to consider.

11 Restitution-wise, we don't have restitution claimed
12 right now but a request to leave it open. I'm going to
13 leave restitution open and that's going to essentially
14 come down to perhaps some hearings since apparently
15 there's -- there might be a mixture of what you've
16 admitted doing with what somebody else has done to your
17 victim.

18 It is almost inconceivable to me -- and I say
19 almost; I don't say it's inconceivable -- but having
20 seen young people testify about the things that others
21 have done to them, it's hard for me to imagine a child
22 making this stuff up. It is really hard. It's hard for
23 juries and that's probably why you cut the deal that you
24 did. She was 13 years old. The courts are here to
25 protect children. We're here to protect the disabled

1 and the infirm and the elderly. Those are the victim
2 groups and categories that really make -- I don't have
3 any hair on the top of my head, but it makes the hair on
4 the back of my neck stand up when I get cases like this.

5 So here's what we're going to do: Your sentence is
6 going to be six years fixed, three years indeterminate.
7 I'll impose that but retain jurisdiction and send you on
8 the rider.

9 Your fine's going to be \$1,000. Court costs are --
10 Do you know off the top of your head the court
11 costs?

12 (Judge confers with clerk.)

13 THE COURT: Okay. Court costs are laid out in the
14 statute. You're going to get the statutory court costs.

15 Did Dr. Hatzenbuehler bill us?

16 (Judge confers with clerk.)

17 THE COURT: We don't have an invoice. There's going
18 to be an invoice for the psychosexual and polygraph that
19 will also be ordered as part of restitution in this
20 matter.

21 MR. LAGGIS: Judge, both of those items are paid for
22 already.

23 THE COURT: Already paid for? Okay. Thank you,
24 Mr. Laggis. There won't be any restitution for those.

25 Oh, and I will note when I went through the 44 pages

1 that you provided, there was another psychosexual
2 evaluation done much earlier by someone else down in
3 Utah that I reviewed.

4 So it will be a thousand in court costs.

5 This is your first felony. They're going to have to
6 take your DNA. That costs you \$100. They'll figure
7 that out with you up at the penitentiary.

8 I think we might be down to the right to appeal.
9 You have a right to appeal this sentence within 42 days.
10 The cost of appeal and the state appellate public
11 defender will be provided for you if you qualify upon
12 application. Okay?

13 I'm going to have you taken into custody now by the
14 marshal.

15 Court's adjourned.

16 (Proceedings held 01-09-2026 concluded at 4:26 p.m.)

17 -ooOoo-
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REPORTER'S CERTIFICATE

I, STEPHANIE MORSE, Certified Shorthand Reporter #708, State of Idaho, do hereby certify that the foregoing transcript, consisting of pages 1 to 43, inclusive, is a true and accurate record of the proceedings had on the dates and at the times indicated therein as stenographically reported by me to the best of my ability, and contains all of the material requested.

IN WITNESS WHEREOF, I have hereunto set my hand and seal this 23rd day of September, 2026.



STEPHANIE MORSE, RPR, CRR, CSR